

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JULY 14, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**TEGRE MILES et al. v. BRIAN SANTOS BANIQUED et al.
Case No. CU25-05574**

GEORGIA ST.'s Motion to Compel MILES's Further Responses to Form Interrogatories and Requests for Production

TENTATIVE RULING

Defendant GEORGIA ST. LLC ("GEORGIA ST.") moves to compel Plaintiff TEGRE MILES's ("MILES") further response to form interrogatories and requests for production.

The court has not received opposition to the motion.

Meet and Confer Efforts. The court first considers the adequacy of the parties' efforts to meet and confer to work discovery issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" to compel. GEORGIA ST.'s counsel's attached declaration in support of the motion states that counsel served the discovery requests at issue on October 27, 2025. (Declaration of Peter N. Hadiaris in Support of Motion to Compel Further Responses ("Hadiaris Dec.") at ¶ 6, Exhibits 1-3.) MILES responded on December 16, 2025 with solely objections; Plaintiff called on a few times in the next few days to address perceived deficiencies and on December 19 and 24 sent emails. (*Id.* at ¶ 6, 9, Exhibits 4-7.) None of Plaintiff's outreach garnered a response. (*Id.* at ¶ 9.) The instant motion was filed on January 20, 2026.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424 [factors include complexity of discovery issues, history of counsel in prior disputes, judge's gut feeling; sending one brief letter 13 days prior to deadline to file motion was not sufficient attempt].) The court finds GEORGIA ST. made adequate efforts to meet and confer.

Analysis. MILES served boilerplate, inapplicable objections to form interrogatories, with no response notwithstanding the objections following. Form interrogatories are specially approved by the Judicial Council to seek basic information about a case and are generally not objectionable. MILES's objections to the form interrogatories are unreasonable and without merit. GEORGIA ST.'s requests for production are reasonably calculated to lead to the discovery of admissible evidence and are also not objectionable. MILES has filed no opposition and gives no defense of his objection-only responses.

Sanctions. Code of Civil Procedure sections 2030.300, subdivision (d) [interrogatories] and 2031.310, subdivision (h) [inspection demands] require sanctions against a party that unsuccessfully makes or opposes a motion to compel further responses to discovery requests, unless the court finds that the losing party acted with substantial justification or that other circumstances weigh against the imposition of sanctions. MILES shows no justification for his use of boilerplate objections in response to form interrogatories. However, the court notes that GEORGIA ST.'s requested \$1,000 in sanctions pursuant to Code of Civil Procedure section 2023.050 is not appropriately imposed at this time as this is a motion to compel further responses and not a motion for sanctions for misuse of the discovery process under sections 2023.030 and 2023.040. The court imposes \$4,385 in sanctions under sections 2030.300 and 2031.310 as compensation for GEORGIA ST.'s counsel's time dealing with this matter, adjusting the requested amount in light of the fact MILES has not filed opposition requiring any responsive work.

Conclusion. GEORGIA ST.'s unopposed motion is granted. MILES is to serve further responses to GEORGIA ST.'s form interrogatories and requests for production within ten days of the date of this order. The court imposes \$4,385 in sanctions against Gomez Law, APC, due and payable within ten days of the date of this order.

McCONVILLE v. TEKSYSTEMS GLOBAL SERVICES LLC, et al.
Case No. CU25-11932

Application For Sara A. Fevurly to Appear as Counsel Pro Hac Vice

TENTATIVE RULING

The application is GRANTED.